

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TYRONE ROUSE,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JASON
MERCHAN, SHIELD NUMBER 012777, AND
POLICE OFFICER DURAN, SHIELD
NUMBER UNKNOWN

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Bronx
County as the place of trial.

Basis of venue is place
of occurrence.

SUMMONS

Plaintiff resides at
2095 Creston Avenue
Bronx, New York 10453

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
August 17, 2017



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
By: Tracie A. Sundack, Esq.
Attorneys for Plaintiff
TYRONE ROUSE
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER JASON MERCHAN,
SHIELD NUMBER 012777,
POLICE OFFICER DURAN, SHIELD
NUMBER UNKNOWN
Police Service Area 7
737 Melrose Avenue
Bronx, New York 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TYRONE ROUSE,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER JASON
MERCHAN, SHIELD NUMBER 012777, AND
POLICE OFFICER DURAN, SHIELD
NUMBER UNKNOWN

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff TYRONE ROUSE by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled The New York City Police Department, including all the police officers thereof.
3. That at all times hereinafter mentioned Defendant POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, was employed by Defendant CITY OF NEW YORK as a police officer.
4. That at all times hereinafter mentioned Defendant POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, acted within the scope of his employment for Defendant CITY OF NEW YORK.
5. That at all times hereinafter mentioned Defendant POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, was assigned to Police Service Area 7 (737 Melrose

Avenue, Bronx, New York 10455).

6. That at all times hereinafter mentioned Defendant POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Bronx, City of New York, and under the authority of his office as a police officer for said county and city.

7. That at all times hereinafter mentioned Defendant POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

8. That at all times hereinafter mentioned Defendant POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned Defendant POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, was assigned to Police Service Area 7 (737 Melrose Avenue, Bronx, New York 10455).

10. That at all times hereinafter mentioned Defendant POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Bronx, City of New York, and under the authority of his office as a police officer for said county and city.

11. That on September 25, 2014, at approximately 8:30 P.M., Plaintiff TYRONE ROUSE was lawfully inside 1348 Webster Avenue, in the County of Bronx, City and State of New York, when he was suddenly accosted by members of the New York City Police Department including Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN.

12. That on the aforementioned date, time and place Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, stopped Plaintiff TYRONE ROUSE, asked him for identification and inquired as to his purpose in the building. Plaintiff TYRONE ROUSE explained that he was in

the building visiting friends. Plaintiff TYRONE ROUSE was reaching into his pocket for the requested identification when, without just cause or provocation, Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, grabbed Plaintiff TYRONE ROUSE, pushed him against a nearby wall, and struck Plaintiff in the face. Following this unprovoked assault, Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, searched Plaintiff TYRONE ROUSE. Upon information and belief, the search failed to find any evidence of illegal activity or give cause for Plaintiff's arrest. After the search was completed, Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, handcuffed Plaintiff TYRONE ROUSE, and placed him under arrest despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

13. That at the aforementioned time and place, Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, without any just cause or provocation, willfully, wantonly, maliciously, and recklessly assaulted, attacked and verbally abused Plaintiff TYRONE ROUSE.

14. That, as a result of this unprovoked assault, Plaintiff TYRONE ROUSE sustained injuries to his face and wrists.

15. That, on the aforementioned date, time and place, Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, placed Plaintiff TYRONE ROUSE under arrest despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

16. That Plaintiff TYRONE ROUSE was then transported to Police Service Area 7 (737 Melrose Avenue, Bronx, New York 10455) of the New York City Police Department where he was subjected to an illegal strip-search and his arrest was processed. Plaintiff TYRONE ROUSE was then transported to Central Booking for arraignment.

17. That on September 26, 2014, following arraignment, Plaintiff TYRONE ROUSE was released from custody on his own recognizance

18. That on or about August 17, 2016, all criminal charges against Plaintiff TYRONE ROUSE were dismissed.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

19. Plaintiff TYRONE ROUSE repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

20. The level of force employed by Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, was objectively unreasonable and in violation of Plaintiff TYRONE ROUSE's constitutional rights.

21. As a result of the aforementioned conduct of Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, Plaintiff TYRONE ROUSE was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

22. Plaintiff TYRONE ROUSE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

23. That at the aforementioned time and place, Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, placed Plaintiff TYRONE ROUSE under arrest despite Defendants' knowledge that they lacked probable cause to do so.

24. That Plaintiff TYRONE ROUSE had not committed any offense and Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

25. That Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, were aware that probable cause did not exist for the arrest and detention of Plaintiff TYRONE ROUSE and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff TYRONE ROUSE and such actions were committed in bad faith.

26. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff TYRONE ROUSE and such actions were committed in bad faith.

27. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff TYRONE ROUSE was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

28. As a further result of the above-described acts, Plaintiff TYRONE ROUSE was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

29. Plaintiff TYRONE ROUSE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

30. That Plaintiff TYRONE ROUSE was falsely imprisoned from approximately 8:30 PM on September 25, 2014, to approximately 4:00 PM. on September 26, 2014, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

31. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, intended to confine Plaintiff TYRONE ROUSE and Plaintiff TYRONE ROUSE was conscious of the confinement, and Plaintiff TYRONE ROUSE did not consent to the confinement.

32. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff TYRONE ROUSE and damaging Plaintiff TYRONE ROUSE in his reputation and depriving him of his liberty.

33. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff TYRONE ROUSE suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

34. Plaintiff TYRONE ROUSE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

35. That Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, misrepresented

and falsified evidence before the District Attorney.

36. That Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, did not make a complete and full statement of facts to the District Attorney.

37. That Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, withheld exculpatory evidence from the District Attorney.

38. That Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, were directly and actively involved in the initiation of criminal proceedings against Plaintiff TYRONE ROUSE.

39. That Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, lacked probable cause to initiate criminal proceedings against Plaintiff TYRONE ROUSE.

40. That Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, acted with malice in initiating criminal proceedings against Plaintiff TYRONE ROUSE.

41. That Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, were directly and actively involved in the continuation of criminal proceedings against Plaintiff TYRONE ROUSE.

42. That Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, lacked probable cause to continue criminal proceedings against Plaintiff TYRONE ROUSE.

43. That Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, acted with malice in continuing criminal proceedings Plaintiff TYRONE ROUSE.

44. That Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

45. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, the criminal proceedings were terminated in Plaintiff TYRONE ROUSE's favor.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

46. Plaintiff TYRONE ROUSE repeats, reiterates and realleges each and every allegation contained in this complaint.

47. Each and every individual Defendant had an affirmative duty to intervene on Plaintiff TYRONE ROUSE's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

48. As a result of the aforementioned conduct of the individual Defendants, Plaintiff TYRONE ROUSE's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

49. Plaintiff TYRONE ROUSE repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

50. Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

51. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited

to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

52. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff TYRONE ROUSE.

53. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff TYRONE ROUSE as alleged herein.

54. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff TYRONE ROUSE as alleged herein.

55. Defendants POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff TYRONE ROUSE's constitutional rights.

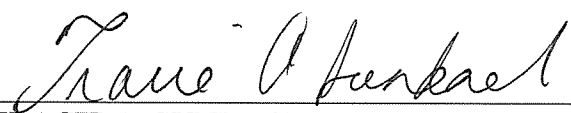
56. All of the foregoing acts by defendants deprived Plaintiff TYRONE ROUSE of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

57. As a result of the foregoing, Plaintiff TYRONE ROUSE is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff TYRONE ROUSE demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER JASON MERCHAN, SHIELD NUMBER 012777, and POLICE OFFICER DURAN, SHIELD NUMBER UNKNOWN, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
August 17, 2017



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
By: Tracie A. Sundack, Esq.
Attorneys for Plaintiff
TYRONE ROUSE
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

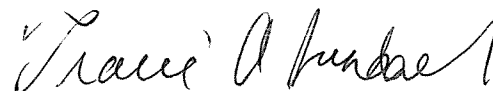
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
August 17, 2017



TRACIE A. SUNDACK